



CHAPTER xxxv.

An Act to confirm a Provisional Order made under section one of the Electricity (Supply) Act 1922 relating to the West Midlands Joint Electricity Authority.

[26th July 1946.]

WHEREAS under the provisions of section one of the Electricity (Supply) Act 1922 the Minister of Fuel and Power has confirmed a Provisional Order made by the Electricity Commissioners which needs confirmation by Parliament : <sup>12 & 13 Geo. 5.
c. 46.</sup>

Be it therefore enacted by the King's most Excellent Majesty by and with the advice and consent of the Lords Spiritual and Temporal and Commons in this present Parliament assembled and by the authority of the same as follows :—

1. The Order as amended and set out in the schedule to this Order in Act is hereby confirmed and shall have full validity and force. <sup>schedule
confirmed.</sup>

2. This Act may be cited as the West Midlands Joint Electricity Short title.
Authority Order Confirmation Act 1946.

SCHEDULE.WEST MIDLANDS JOINT ELECTRICITY
AUTHORITY.

Provisional Order made by the Electricity Commissioners and confirmed by the Minister of Fuel and Power under the Electricity (Supply) Acts 1882 to 1936 for increasing the borrowing powers of the West Midlands Joint Electricity Authority.

Short and
collective titles.

1. (a) This Order may be cited as the West Midlands Joint Electricity Authority (Increase of Borrowing Powers) Order 1946.

(b) The West Midlands Electricity District Orders 1925 to 1938 and this Order may be cited together as the West Midlands Electricity District Orders 1925 to 1946.

Maximum
amount which
may be
borrowed by
West Midlands
Joint
Electricity
Authority.

2.—(1) Section 2 (Maximum amount which may be borrowed by West Midlands Joint Electricity Authority) of the West Midlands Joint Electricity Authority (Increase of Borrowing Powers) Order 1938 is hereby repealed.

(2) The West Midlands Electricity District Order 1925 shall have effect as if for the reference to five million pounds in section 33 (Power to borrow and maximum amount which may be borrowed) of the schedule thereto there were inserted a reference to seventeen million pounds and accordingly the maximum amount which may be borrowed by the West Midlands Joint Electricity Authority shall be seventeen million pounds.

Saving for
powers of
Treasury.

3. So long as the making of an issue of capital in the United Kingdom without the consent of the Treasury is prohibited by regulations made under the Emergency Powers (Defence) Act 1939 or under that Act as extended by any subsequent enactment including the Supplies and Services (Transitional Powers) Act 1945 or so long as the borrowing of money in Great Britain without the consent of the Treasury is prohibited by an order made under section one of the Borrowing (Control and Guarantees) Act 1946 it shall not be lawful to exercise the powers of borrowing conferred by this Order (other than the power of borrowing to pay the costs charges and expenses of this Order as hereinafter defined) without such consent.

Costs of Order.

4. All costs charges and expenses preliminary to and of and incidental to the preparing applying for and obtaining of this Order and otherwise incurred in reference thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the West Midlands Joint Electricity Authority out of moneys to be borrowed by the Authority under the West Midlands Electricity District Orders

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1925 to 1938 and this Order but may in the first instance be paid by the Authority as part of their administrative expenses and moneys so paid shall be recouped by and charged to the moneys to be borrowed under the said Orders.

5. This Order shall come into force upon the day when the Act Commencement confirming this Order is passed and that day shall be the commencement of Order.
of this Order.

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